

HOUSE BILL 1509

By Warner

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 68, Chapter 221 and Title 69, relative to
drinking water.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 221, Part 7, is amended by
adding the following as a new section:

(a) As used in this section "utility":

(1) Means:

(A) An entity that provides drinking water services to the public;

and

(B) Is owned or operated by a county, metropolitan government,
city, or town, or is subject to the jurisdiction of the Tennessee board of
utility regulation in accordance with § 7-82-701; and

(2) Includes a public water system.

(b)

(1) Notwithstanding another law and except as provided in subdivision
(b)(2), the department shall not prohibit a utility from pumping or otherwise
withdrawing water from natural waters for purposes of providing drinking water,
including as a prerequisite for renewal of the utility's permit.

(2)

(A) The department may prohibit a utility from pumping or
otherwise withdrawing water from natural waters for purposes of providing
drinking water if required to comply with a federal law, including the

federal Safe Drinking Water Act, as amended (42 U.S.C. §§ 300g-4 and 300g-5), the federal Water Pollution Control Act of 1972, P.L. 92-500, as amended, (33 U.S.C. § 1251 et seq.), or the federal Endangered Species Act of 1973, Public Law 93-205 (87 Stat. 884) (16 U.S.C. § 1531 et seq.). This exemption does not apply if the prohibition is only recommended under federal law.

(B) If the department prohibits a utility from pumping or otherwise withdrawing water from natural waters under subdivision (b)(2)(A), then the department must provide the utility with written notice of the action. The notice must describe the basis for the action, including a citation to the specific federal law for which the action was taken to comply.

(c) If the department prohibits a utility from pumping or otherwise withdrawing water in violation of subdivisions (b)(1) or (2), then the utility may submit a complaint to the board.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to actions taken on or after that date.